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CLERK, U.S. DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA
BY
DEPUTY CLERK

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

Case No.: 2:26-CV-0193-DC-CKD (PS)

JOSEELYN ROJO, Parole Agent,
California Department of Corrections and Rehabilitation,
in her individual capacity;
GARY NOGUCHI, Supervising Parole Agent,
California Department of Corrections and Rehabilitation,
with final authority over parole travel approvals,
in his individual capacity;
JEFF MACOMBER, Secretary,
California Department of Corrections and Rehabilitation,
in his official capacity,

Defendants.

COMPLAINT FOR DAMAGES, DECLARATORY, AND INJUNCTIVE RELIEF FOR VIOLATIONS OF THE FIRST AND FOURTEENTH AMENDMENTS (42 U.S.C. § 1983)

JURY TRIAL DEMANDED

INTRODUCTION

1. This civil rights action arises from Defendants' denial of Plaintiff's request to attend his parents' church anniversary celebration—a significant religious observance—through a pattern of delay, false assurances, and the invocation of an unwritten and unpublished parole policy.

2. After repeatedly representing that Plaintiff's request was being submitted and reviewed, Defendants delivered a denial only at the moment Plaintiff's family was departing, leaving no practical opportunity for appeal, modification, or alternative accommodation.

3. The conduct alleged herein violated clearly established constitutional law. Government officials may not substantially burden sincere religious exercise through non-neutral, secretly applied restrictions lacking individualized assessment, nor may they deprive liberty through deception, bad faith, or arbitrary decision-making.

I. JURISDICTION AND VENUE

4. This action arises under the Constitution and laws of the United States, including 42 U.S.C. § 1983.

5. This Court has jurisdiction pursuant to 28 U.S.C. §§ 1331 and 1343(a)(3)–(4).

6. Venue is proper in this District under 28 U.S.C. § 1391(b) because all events and omissions giving rise to Plaintiff's claims occurred in Stockton, San Joaquin County, California, within the Eastern District of California.

II. PARTIES

7. Plaintiff Brendan Newanforbi is an adult individual residing in Stockton, California. At all times relevant to this Complaint, Plaintiff was on parole under the supervision of the California Department of Corrections and Rehabilitation ("CDCR").

8. Defendant Joseelyn Rojo ("Rojo") was, at all times relevant, a Parole Agent employed by CDCR and assigned as Plaintiff's supervising parole agent at the Stockton Parole Unit, located at 612 N. Carlton Avenue, Stockton, California 95203. Rojo acted under color of state law in all conduct alleged herein. She is sued in her individual capacity for monetary damages.

9. Defendant Gary Noguchi ("Noguchi") was, at all times relevant, a Supervising Parole Agent employed by CDCR with final authority over parole travel approvals, including Plaintiff's request to travel out of state for a religious observance. Noguchi acted under color of state law in all conduct alleged herein. He is sued in his individual capacity for monetary damages.

10. Defendant Jeff Macomber ("Macomber") is the Secretary of the California Department of Corrections and Rehabilitation, with authority over department-wide policies, including parole travel policies. Macomber is sued in his official capacity solely for purposes of prospective declaratory and injunctive relief.

11. Plaintiff seeks prospective declaratory and injunctive relief against Defendant Macomber in his official capacity to the extent necessary to effectuate such relief, including prohibiting enforcement of unwritten parole travel policies and requiring individualized assessment of religious travel requests.

III. FACTUAL ALLEGATIONS

A. Plaintiff's Sincerely Held Religious Beliefs

12. Plaintiff is a practicing Christian. His religious faith is sincere, deeply held, and central to his identity.

13. Plaintiff's parents are pastors who operate a church in Reno, Nevada. Participation in significant church events, including anniversary celebrations, is a core expression of Plaintiff's religious devotion and family life.

14. In 2021, while on parole under a different supervising agent, Plaintiff was granted permission to travel to Reno to attend a church service at the same church, demonstrating that such travel is consistent with legitimate parole supervision objectives. Plaintiff's compliance with all parole terms during and after that prior travel demonstrates that such approved travel does not pose a threat to public safety or his rehabilitation.

B. Plaintiff's November 2025 Travel Request

15. Plaintiff's parents' church scheduled its 19th Church Anniversary celebration for November 21–23, 2025, in Reno, Nevada.

16. On November 17, 2025, Plaintiff personally submitted a complete travel request packet to Defendant Rojo at the Stockton Parole Unit. The packet included:

a. An official church anniversary flyer documenting the religious nature of the event;

b. A pre-purchased Greyhound bus ticket; and

c. A written request specifying dates, destination, and religious and familial purpose.

17. Plaintiff's submission complied with all published CDCR parole travel requirements.

C. Representations and Induced Reliance

18. On November 19, 2025, Defendant Rojo confirmed by telephone that she had received Plaintiff's request and stated that she would submit it to administration for approval.

19. That same morning, Plaintiff provided Defendant Rojo with the address of the Reno hotel where he would be staying.

20. Defendant Rojo responded by text message: "Okay thank you I'll submit that pass and see what administration says."

21. These representations reasonably induced Plaintiff to believe his request was being processed in good faith and that a timely decision would be communicated.

D. Delay and Last-Minute Denial

22. On November 20, 2025, Plaintiff requested a status update. Defendant Rojo responded that she would visit Plaintiff that day but did not do so and provided no explanation.

23. On November 21, 2025—the day of departure—Defendant Rojo continued to delay communication until Plaintiff's family was preparing to leave for Reno.

24. Only when Defendant Rojo arrived at Plaintiff's residence as his family was physically departing did she inform him that the travel request had been denied by Defendant Gary Noguchi.

25. Defendant Rojo stated that the denial was based on an alleged office policy limiting out-of-state travel to "an emergency or a death in the family."

26. This alleged policy appears nowhere in CDCR's published parole conditions. Defendants did not provide Plaintiff with any written policy, regulation, directive, or citation supporting the denial.

27. Defendant Rojo additionally cited Plaintiff's ankle monitor as justification for the first time at the moment of denial, despite days of prior communications in which this concern was never raised. The ankle monitor had never previously been cited as an impediment to travel, and Defendants proposed no means by which its use could be accommodated for the approved trip, such as confirming connectivity in Reno.

28. The timing of the denial foreclosed any meaningful opportunity for administrative review, appeal, or alternative accommodation.

29. Defendants' decision was communicated internally prior to its disclosure to Plaintiff, despite repeated representations that the request remained under review.

30. Defendants provided no notice, standards, or opportunity to be heard prior to denial.

E. Disparate Treatment of Religious Travel

31. Upon information and belief, parolees under Defendants' supervision were permitted to travel out of state for non-religious purposes under comparable or less restrictive circumstances.

IV. CLAIMS FOR RELIEF

COUNT I

Violation of the Free Exercise Clause of the First Amendment

(42 U.S.C. § 1983 – Against Defendants Rojo and Noguchi)

32. Plaintiff incorporates by reference all preceding paragraphs.

33. The Free Exercise Clause of the First Amendment, applicable to the states through the Fourteenth Amendment, prohibits government officials from substantially burdening sincere religious exercise through policies that are not neutral or generally applicable, or that lack individualized assessment.

34. Plaintiff's desire to attend his parents' church anniversary celebration was a sincere expression of his religious faith.

35. Defendants substantially burdened Plaintiff's religious exercise by denying his travel request based on an unwritten policy that appears to permit secular travel while prohibiting religious travel, thereby failing the neutrality and general applicability requirements.

36. Defendants failed to conduct an individualized assessment of Plaintiff's request or to consider less restrictive alternatives.

37. Defendants' conduct violated Plaintiff's clearly established First Amendment rights.

COUNT II

Violation of the Due Process Clause of the Fourteenth Amendment

(42 U.S.C. § 1983 – Against Defendants Rojo and Noguchi)

38. Plaintiff incorporates by reference all preceding paragraphs.

39. The Due Process Clause of the Fourteenth Amendment prohibits state actors from depriving individuals of liberty through arbitrary, capricious, or bad-faith conduct, or through secret policies that afford no notice or opportunity to be heard.

40. Defendants induced Plaintiff's reliance through repeated representations that his request was being processed, while internally communicating a denial without disclosure.

41. Defendants delivered a denial at the last possible moment, foreclosing any meaningful opportunity for appeal or accommodation.

42. Defendants invoked an unwritten, unpublished policy without providing Plaintiff with any notice, standards, or opportunity to be heard prior to denial.

43. Defendants' conduct violated Plaintiff's clearly established Fourteenth Amendment due process rights.

V. DAMAGES

44. Plaintiff seeks compensatory damages for emotional distress, loss of religious participation, deprivation of family association, and economic loss.

45. Defendants acted with reckless disregard for Plaintiff's clearly established constitutional rights, warranting punitive damages.

VI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

A. Award compensatory damages against Defendants Rojo and Noguchi in an amount to be proven at trial;

B. Award punitive damages against Defendants Rojo and Noguchi;

C. Issue a declaratory judgment that Defendants violated Plaintiff's rights under the First and Fourteenth Amendments;

D. Issue a permanent injunction enjoining Defendant Macomber and his agents from enforcing unwritten parole travel policies and requiring that all parole travel requests, particularly those implicating fundamental rights, receive a timely, written, and individualized assessment stating the factual and regulatory basis for any denial;

E. Absent injunctive relief, Plaintiff remains subject to future enforcement of the same unwritten policy;

F. Award Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;

G. Grant such other and further relief as the Court deems just and proper.

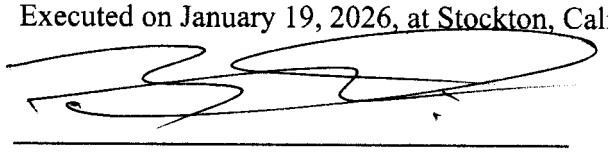
VII. JURY DEMAND

Plaintiff demands a trial by jury on all issues so triable.

VERIFICATION

I, Brendan Newanforbi, declare under penalty of perjury under the laws of the United States that the foregoing is true and correct to the best of my knowledge, information, and belief.

Executed on January 19, 2026, at Stockton, California.



BRENDAN NGEHSI NEWANFORBI

Plaintiff, Pro Se

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UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. JOSEELYN ROJO, ET AL., Defendant(s).	Case No. _____ (To be assigned by Clerk) CIVIL RIGHTS ACTION 42 U.S.C. § 1983

TRANSMITTAL OF NEW CIVIL ACTION

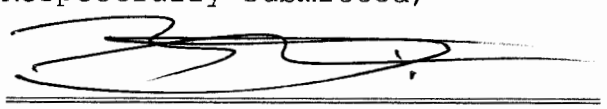
TO THE CLERK OF COURT:

Plaintiff, proceeding pro se, respectfully submits the following documents for filing as a new civil action pursuant to 42 U.S.C. § 1983:

1. Civil Cover Sheet (JS-44)
2. Application to Proceed In Forma Pauperis (AO 239)
3. Request for Electronic Notification (G-1145)
4. Complaint (with exhibits, if applicable)

DATED: January 19, 2026

Respectfully submitted,



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